BRIGHTER FUTURE MEDIATION

MIAM Record

Mediator	
Date and time	
Other people present?	
Case reference	
Type of case: (child, P&F, AIM, other)	

Client information	
Name*	
DOB *	
Address *	
Confirm Telephone	
How did you hear about BFM?	
Occupation	
Do you consider yourself to have a disability or any accessibility needs you'd like to make us aware of? How can we make the process most accessible for you?	
Ethnicity (for monitoring purposes only)	
Religious/cultural/language needs/considerations? (please specify)	
New partner (do you live together?)	

Introduction	
Purpose of meeting/the mediation process	
Confidentiality & exceptions: This meeting is confidential except where there are concerns about risk of harm to a child or adult, or criminal activity (FMC Code 5.2.1)	

Tell me a little bit about what brings you here today? Just a brief outline as I will be asking for more details as we go through

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*Child/ren's names	Date of birth	Address / place of residence

Other client's details	
Full name	
Date of Birth	
Address	
Telephone number	
Email	

Marriage and co-habitation			
Married Y/N		Divorce started? Y/N & date	
Date of marriage		Petitioner?	
Lived together Y/N		Decree Nisi/Conditional order (date)	
Date of cohabitation		Decree Absolute/Final order (date)	
Date of separation		Court orders	
Both parents have PR?		Applications to court?	
Is PR an issue?			

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Checklist	Y/N?	Notes
Made client aware of 4-month rule, in relation to filing court application		
Mediation legally privileged/ not binding		
Had legal advice? Would like free consultation?		
Information given on legal aid?		
Reconciliation tried? Recently?		
Other agency/ies signposted (if yes, specify)		
Info given about alternatives:		
Arbitration - A private judge (arbitrator) makes a binding decision about your dispute, faster and less formal than court but still legally enforceable.		
Collaborative law - You and your ex each hire specially trained solicitors and all four of you work together in meetings to reach agreements, with everyone committed to staying out of court.		
Negotiation through solicitors - Your solicitor and your ex's solicitor communicate on your behalf to try to reach agreements without you having to meet directly.		
Early neutral evaluation - An experienced family law professional gives you both an independent, non-binding opinion on what a court might decide, helping you understand the strengths and weaknesses of your case.		
Private FDR - You hire a senior lawyer or retired judge to run a confidential settlement meeting (like the court's Financial Dispute Resolution hearing) where they help you negotiate a financial agreement without going to court.		
Conflict of interest?		
Any previous or current court orders?		
Are there other adults with caring responsibilities who should be involved? E.g. step-parents, grandparents, other family members (specify)		
In <u>P&F/AIM</u> pls inform them of: • **The Financial Disclosure booklet that will be sent before first session and explain full and frank disclosure.**		

• **OFS and MOU- why they are needed and fees (OFS is charged before first joint session)** • **MOU is charged when agreement reached)**		
In children's cases inform them of: • **Memorandum of Understanding- purpose and fees** • **Statement of child arrangements – purpose and fees**		
Willing to mediate online?		
No. of sessions estimated (please state) – special conditions e.g. **shuttle or hybrid mediation**?		
MOJ voucher discussed/eligible? (check they haven't claimed before)		

Background notes and current living/parenting arrangements:
Prompts: • **What brings you here today?** • **Where does each client/the child/ren live? With who/m?** • **The children? Biological and any other relevant children.** • **Current contact arrangements?**

Welfare of child/ren and other children's issues:
Prompts: • **Have children's services ever been involved with your family? Current involvement?** • **Have any concerns been raised about the children's safety or wellbeing?** • **Have the children witnessed any conflict or concerning behaviour?** • **Do the children have any unexplained injuries or behavioural changes?** • **Are there any safeguarding plans or child protection plans in place**

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If significant harm is suspected or disclosed, mediator must ensure appropriate agency is notified per FMC Code 7.9.
Agency contacted:
Date:
Time:

Notes:

Child Inclusive Mediation

All children and young people aged 10 and above SHOULD be offered the opportunity to have their voices heard directly during mediation, if they wish.

- Have you explained this option to the client? Yes/No. Client's response:
- If child consultation agreed, child's consent will be obtained separately as well as consent from both parents.
- Explained to client: Discussions with children are confidential unless safeguarding concerns arise. The child decides what, if anything, is shared with parents. Yes/No
- (Fees **£100 per parent for 1 hour with specialist mediator).**

Notes:

Screening for domestic abuse/imbalance of power and control:

These questions must be asked to <u>all</u> clients:

- **Has your ex-partner ever <u>hurt</u> or <u>scared</u> you? Can you tell me a little more about that? What was the worst incident? When was that? Most recent**

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incident of abuse? (be aware post-separation violence = heightened risk of significant harm)

- **Have police/other agencies ever been involved?**
- **Was there ever a time things became physical?**
- **Who has the balance of power and control? How might this play out in mediation? How can this be managed?**
- **Would you feel safe to engage in joint sessions? How can we support you to feel safe? Shuttle?**
- **Does/did your ex-partner control your finances, social contacts, or daily activities?**
- **Do/did you feel you need/needed their permission to make decisions?**
- **Have you ever felt afraid of their reaction to something you might say or do?**

If concerns revealed you must specify why it is safe to proceed with mediation and any safeguarding measures.

Set out any conclusions affecting mediation reached by you and client, including safety measures (e.g shuttle)

Where abuse has or is alleged to have taken place the mediator must provide the participant with information about available support services.
Support services offered: (delete as appropriate): Women's Aid, Refuge, Respect (Men's Advice Line), National Domestic Abuse Helpline, Local IDVA services, Other:
If domestic abuse disclosed, explained legal aid may be available if evidence meets prescribed requirements- direct to MIAM exemptions

Notes:

Emotional readiness to engage and safety during mediation
Prompts: • **What do you need, in order to take part on an equal basis?** • **Do you feel you are choosing to attend mediation freely, without pressure or coercion?**

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• **Have you been pressured by anyone to attend this meeting or to agree to mediation?** • **Do you understand that you can withdraw from mediation at any time?** • **How would you feel about being in the same room (virtually) as the other party?** • **Capacity to participate (mental capacity, substance misuse considerations)**
Safety measures discussed: • Separate virtual waiting rooms/ shuttle • Staggered login times • Ability to leave session immediately **Safety measures agreed:**

Issues for mediation (X as appropriate)			
Child/ren's arrangements		**Financial settlement**	
Living arrangements		Accommodation / family home	
Time spent with each parent		Other assets	
PR issues, e.g. health, faith, education, travel, re-location, name change		Liabilities	
Communications:		Pensions	
Maintenance:		Spousal maintenance	
Other: (please specify)			

Would you like more information on any of the following: **Please indicate below and one of our team will get back to them.** **Free consultation**	
Help with completing the C100/Form A/Draft Consent order?	
Solicitors/legal advice?	

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Divorce/separation coaching?	
Therapy/counselling?	
Financial advice/planning?	
Mortgage Advisors	
Wills?	
Other?	

Mediators checklist	
Suitable for mediation? Yes/No and reasons (**not** to be communicated with clients)	
Next steps? Type of mediation? Timeline? Agreed with client?	
• **OFS required? (inform of fees and payment upfront)**	
• **MOU required? (inform of fees)**	
• **Statement of child arrangements required? (inform of fees)**	
Professional Practice Consultancy discussion required? Y/N	
If yes, reason: • Complex safeguarding concerns • Domestic abuse disclosed • Power imbalance concerns • Capacity concerns • Difficult professional judgement • Other:	
• **PPC discussion date:** • **PPC consultant name:** • **Key outcomes/guidance from PPC:**	
Referral to CAFCASS/Other	
Referral to children's services (give details)	

Follow up contact with children's services required?	